



CHAPTER ccxxii.

An Act to enable the mayor aldermen and burgesses of the county borough of South Shields to construct tramways in the borough and for other purposes.

A.D. 1903.

[11th August 1903.]

WHEREAS the borough of South Shields in the county of Durham is a municipal borough subject to the Acts relating to municipal corporations and a county borough within the meaning of the Local Government Act 1888 and is under the government of the mayor aldermen and burgesses of the borough (hereinafter referred to as "the Corporation") who acting by the council are also the urban sanitary authority for the district of the borough:

And whereas certain local Acts and Orders mentioned in the First Schedule to this Act have from time to time been passed made and confirmed and are still wholly or partially in force within the borough which Acts and Orders are in this Act referred to collectively as the former Acts and each of them separately as an Act or Order of the year in which the same was passed:

And whereas by the Order of 1881 the Corporation were authorised to construct and maintain wholly within the borough the street tramways therein described to be used with animal power and under certain conditions with the consent of the Board of Trade with steam or mechanical power and under the Orders of 1881 and 1883 the Corporation have constructed certain of such tramways:

And whereas by the Act of 1896 the Corporation were empowered to construct and maintain wholly within the borough certain other street tramways therein described and were authorised to use cable or electrical power on such tramways and also on the tramways constructed under the Orders of 1881 and 1883:

And whereas it is expedient that the Corporation should be authorised to construct certain additional tramways and that the

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And whereas by the said Act of 1896 it was provided that if the Corporation were unable to demise their tramways upon such terms as would in the opinion of the Board of Trade yield an adequate rental therefor the Board of Trade might grant the Corporation a licence to work such tramways whereupon the Corporation might provide the plant requisite for the purpose but the Corporation have no power to work such tramways except under licence as aforesaid :

And whereas it is expedient that the restrictions on the working of the tramways by the Corporation should be removed and that the provisions as to such working should be altered and enlarged :

And whereas the Corporation have by lease dated the fifth day of September one thousand nine hundred demised their existing tramways to the South Shields Tramways and Carriage Company Limited for a period of seven years expiring on the first day of February one thousand nine hundred and eight but which lease may be terminated by the Corporation on the first day of February one thousand nine hundred and six :

And whereas the existing tramways are at present worked by horse power :

And whereas it is expedient that the Corporation should be authorised to acquire by agreement the interest of the lessees in such tramways :

And whereas it is expedient that the Corporation should be authorised to make and maintain the street improvements and works in this Act authorised and that the powers of the Corporation in relation to health and local government of the borough should be enlarged :

And whereas it is expedient that further borrowing powers should be conferred on the Corporation for the purposes of this Act :

And whereas it is expedient that other provisions as in this Act contained should be sanctioned :

And whereas the objects of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the execution of the works by this Act authorised and such estimates are as follows :—

For the purposes of their tramway undertaking one hundred and seventy-five thousand nine hundred and seventeen pounds ;

For the new streets and street widenings and the purchase of land therefor thirty-two thousand three hundred and fifteen pounds; A.D. 1903.

For the purchase of land for and the erection of municipal buildings the sum of sixty thousand pounds:

And whereas the several works included in such estimates are permanent works within the meaning of section 234 of the Public Health Act 1875:

And whereas an absolute majority of the whole number of the council at a meeting held on the twenty-ninth day of October one thousand nine hundred and two after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Shields Daily Gazette and Shipping Telegraph a newspaper published and circulating in the borough (such notice being in addition to the ordinary notices required for summoning such meeting) resolved that the expense in relation to promoting the Bill for this Act should be charged on the borough fund of the borough:

And whereas such resolution was published twice in the said newspaper and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the nineteenth day of January one thousand nine hundred and three being not less than fourteen days after the deposit of the Bill in Parliament:

And whereas the owners and ratepayers of the borough by resolution in the manner provided in the Third Schedule of the Public Health Act 1875 consented to the promotion of the Bill for this Act:

And whereas plans and sections showing the lines situations and levels of the tramways and works by this Act authorised and plans showing the lands which may be acquired under the powers of this Act and a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of and describing such lands have been deposited with the clerk of the peace for the county of Durham and are in this Act referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and

A.D. 1903. Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the South Shields Corporation Act 1903.

Act divided into Parts. 2. This Act is divided into Parts as follows:—

- Part I.—Preliminary.
- Part II.—Tramways.
- Part III.—Street Works.
- Part IV.—General Provisions common to Tramways and Street Works.
- Part V.—Electrical Supply.
- Part VI.—Lands.
- Part VII.—Financial Provisions.
- Part VIII.—Tuberculosis.
- Part IX.—Police Regulations.
- Part X.—Miscellaneous.

Incorporation of general Acts. 3. The following Acts and parts of Acts (that is to say):—
The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845);
Section 3 (Interpretation of terms) section 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870;

so far as the same are applicable for the purposes of and are not varied by or inconsistent with this Act are hereby incorporated with this Act:

Provided that notwithstanding anything in the Tramways Act 1870 the Corporation may from time to time lease the Corporation tramways (as hereinafter defined) or any part thereof for such period exceeding twenty-one years as the Board of Trade may sanction:

Provided also that the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any alteration of or interference with any telegraphic line belonging to or used by the Postmaster-General The expression “telegraphic line” in this Act has the same meaning as in the Telegraph Act 1878.

Interpretation. 4. In this Act unless the context otherwise requires terms to which meanings are assigned by any Act wholly or partially

incorporated with this Act have the same respective meanings unless there be something in the subject or context repugnant to such construction : A.D. 1903.

- “The borough” means the county borough of South Shields :
- “The Council” means the town council of the borough :
- “The tramways” means the tramways authorised by this Act :
- “The Corporation tramways” includes the tramways authorised by this Act and all tramways for the time being belonging to or leased to or worked by the Corporation :
- “Tramway revenue” includes all revenue of the Corporation arising from the Corporation tramways :
- “Mechanical power” includes steam electrical and every other motive power not being animal power :
- “Engine” includes motor.

5. This Act shall be carried into execution by the Council.

Execution
of Act.

PART II.

TRAMWAYS.

6. Subject to the provisions of this Act the Corporation may make form lay down use work and maintain in the lines and situations and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections the tramways (all in the borough and parish of South Shields) hereinafter described with all necessary and proper rails plates sleepers posts poles brackets conduits channels passages and tubes for ropes cables wires and electric lines junctions turntables turnouts crossings passing-places stables carriage-houses engine boiler and dynamo houses sheds buildings engines dynamos works and conveniences connected therewith respectively. Power to make tramways.

The following are the tramways hereinbefore referred to and authorised by this Act :—

Tramway No. 1 (2 miles 3 furlongs 5·84 chains in length of which 2 miles 0 furlong 0·81 chain is double line and 3 furlongs 5·03 chains is single line) commencing at a point in Pier Parade 0·42 chain south-west of the Wouldhave Memorial and proceeding in a south-westerly and westerly direction along Pier Parade Ocean Road and King Street thence along the east and south sides of the Market Place and thence in a south-westerly direction along Church Way thence in a southerly and south-easterly direction along Station Road thence in a southerly and south-westerly direction along Cuthbert Street and Green Street thence in a

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westerly direction along the western portion of Laygate Lane thence in a south-westerly direction along the south-western portion of Commercial Road thence in a southerly direction along the road known as Corstorphine Town and the road known as Temple Town thence in a south-westerly direction along Slake Terrace and terminating at a point in Slake Terrace 0·13 chain measured in a north-easterly direction from a point in Slake Terrace opposite the centre of the entrance gateway to Tyne Dock the point of measurement being also opposite the centre of East Jarrow Road :

Tramway No. 1 will be laid as a double line except between the following points where it will be laid as a single line (that is to say) :—

From a point in King Street 1·89 chains west of the junction of Fowler Street with King Street to a point in King Street 1·13 chains west of the junction of Russell Street with King Street ;

From a point in Station Road 0·60 chain north-west of the junction of Claypath Lane with Station Road to a point in Laygate Lane 0·62 chain west of the junction of Brunswick Street with Laygate Lane ;

From a point in Commercial Road 1·33 chains north-east of the junction of Pan Bank with Commercial Road to a point in Commercial Road 0·30 chain north-east of the junction of Portberry Street with Commercial Road :

Tramway No. 1A (a double line 1·50 chains in length) commencing at a point on Tramway No. 1 in King Street 1·31 chains measured in an easterly direction from the kerbing of the existing footpath on the east side of the Town Hall in the Market Place and terminating at a point 0·20 chain measured in a westerly direction from the before-mentioned kerbing :

Tramway No. 1B (a single line 2 furlongs 5·76 chains in length) commencing at a point on Tramway No. 1 in Station Road 0·60 chain north-west of the junction of Claypath Lane with Station Road and thence proceeding in a south-easterly direction along the widened portion of Station Road and Derby Street (part of Street Work No. 1 by this Act authorised) to a point in Derby Street 1·41 chains eastward of the junction of Derby Street with Cuthbert Street and Station Road and thence along the new street or cut-through to be made between Derby Street and East Adelaide Street (being also part of Street Work No. 1 aforesaid) thence in a

southerly direction along East Adelaide Street and Adelaide Street and thence in a westerly direction along Laygate Lane terminating at a point on Tramway No. 1 in Laygate Lane 0·62 chain west of the junction of Green Street with Laygate Lane : A.D. 1903.

Tramway No. 1c (a single line 1·45 chains in length) commencing at a point on Tramway No. 3 in Laygate Lane 0·83 chain east of the junction of Green Street with Laygate Lane and terminating at a point on Tramway No. 1 in Laygate Lane 0·62 chain west of the junction of Green Street with Laygate Lane :

Tramway No. 1d (a single line 1·08 chains in length) commencing at a point on Tramway No. 1b in Adelaide Street 0·75 chain north-east of the junction of Laygate Lane with Adelaide Street and terminating at a point on Tramway No. 3 in Laygate Lane 0·50 chain south-east of the junction of Adelaide Street with Laygate Lane :

Tramway No. 2 (1 mile 3 furlongs 6·02 chains in length of which 1 mile 1 furlong 3·99 chains is double line and 2 furlongs 2·03 chains is single line) commencing at a point on Tramway No. 1 in King Street 0·95 chain west of Fowler Street with King Street and proceeding in a south-easterly direction along part of King Street and along Fowler Street for its whole length thence in a southerly and south-easterly direction along Westoe Road to Dean Road and thence south-westerly along a portion of Dean Road (Argyle Terrace (part) and Beaconsfield Terrace) to Sunderland Road and thence in a south-easterly direction along Sunderland Road and terminating at a point in Sunderland Road 0·10 chain north of the boundary of the municipal borough and parish of South Shields in that road :

Tramway No. 2 will be laid as a double line except between the following points where it will be laid as a single line (that is to say) :—

From a point in Sunderland Road 0·45 chain north-west of the junction of the southernmost road leading to Westoe Village with Sunderland Road to a point in Sunderland Road 1·50 chains north-west of the junction of Wood Terrace with Sunderland Road ;

From a point in Sunderland Road 0·07 chain north-west of the junction of Grosvenor Road and Hepscott Terrace with Sunderland Road to a point 1·56 chains north-west

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of the junction of the road leading to and from
Cauldwell with Sunderland Road ;

From a point in Sunderland Road 1·44 chains south-east
of the junction of the road leading to and from Cauldwell
with Sunderland Road to a point 3·45 chains south-east
of the junction of the approach road to Harton Cemetery
with Sunderland Road ;

From a point 6·45 chains south-east of the junction of
the approach road to Harton Cemetery with Sunderland
Road to a point 2·10 chains north-west of the municipal
borough boundary at Sunderland Road :

Tramway No. 2A (a double line 1·62 chains in length) com-
mencing at a point on Tramway No. 1 in Ocean Road
0·90 chain east of the junction of Fowler Street with Ocean
Road and terminating at a point on Tramway No. 2 in Fowler
Street 1·20 chains south-east of the junction of Fowler Street
with Ocean Road :

Tramway No. 2B (a double line 2·08 chains in length) com-
mencing at a point on Tramway No. 3 in Dean Road 1·50
chains south-west of the junction of Imearly Street with
Dean Road and terminating at a point on Tramway No. 2 in
Sunderland Road 1·32 chains south-east of the junction of
Sunderland Road with Dean Road :

Tramway No. 3 (a double line 5 furlongs 0·74 chain in length)
commencing at a point on Tramway No. 2 in Dean Road
1·40 chains north-east of the junction of Imearly Street with
Dean Road thence proceeding in a westerly direction along
Dean Road (Meldon Terrace and Windsor Terrace) and
thence in a north-westerly direction along Laygate Lane and
terminating at the point of commencement of Tramway
No. 7 in Laygate Lane 0·83 chain east of the junction of
Green Street with Laygate Lane :

Tramway No. 3A (a single line 1·24 chains in length) commencing
at the termination above described of Tramway No. 3 in
Laygate Lane and terminating at a point on Tramway No. 1
in Green Street 0·60 chain north-east of the junction of
Laygate Lane with Green Street :

Tramway No. 4 (a double line 7 furlongs 7·77 chains in length)
commencing at a point on Tramway No. 3 in Laygate Lane
0·85 chain north-west of the junction of Dean Road with
Laygate Lane thence proceeding in a south-easterly direction
along Laygate Lane over Dean Road thence in a south-
easterly southerly and south-westerly direction along Stanhope

Road for its whole length and terminating at a point on Tramway No. 6 in Stanhope Road 1·05 chains north-east of the junction of Boldon Lane with Stanhope Road : A.D. 1903.

Tramway No. 4A (a double line 1·37 chains in length) commencing at a point on Tramway No. 3 in Dean Road 1·05 chains north-east of the junction of Laygate Lane with Dean Road and terminating at a point on Tramway No. 4 in Stanhope Road 1·00 chain south-east of the said junction of Laygate Lane with Dean Road :

Tramway No. 5 (2 furlongs 9·21 chains in length of which 6·00 chains is double line and 2 furlongs 3·21 chains is single line) commencing at a point on Tramway No. 1 in Cuthbert Street 0·55 chain north of the junction of Victoria Road with Cuthbert Street and Green Street thence proceeding in an easterly direction along Victoria Road and terminating at a point on Tramway No. 2 in Westoe Road 1·30 chains north of the junction of Mendelssohn Road with Westoe Road :

Tramway No. 5 will be laid as a single line except between the following points where it will be laid as a double line (that is to say) :—

From a point in Victoria Road 0·70 chain west of the junction of Victoria Road with Princes Street to a point in Victoria Road 0·25 chain west of the junction of Victoria Road with Maxwell Street ;

From a point in Victoria Road 1·75 chains east of the junction of Victoria Road with Isabella Street to a point 0·20 chain west of the junction of Victoria Road with John Clay Street :

Tramway No. 5A (a single line 1·00 chain in length) commencing at a point on Tramway No. 1B in East Adelaide Street 0·65 chain north of the junction of Victoria Road with East Adelaide Street and terminating at a point on Tramway No. 5 in Victoria Road 0·68 chain east of the junction of East Adelaide Street with Victoria Road :

Tramway No. 5B (a single line 1·00 chain in length) commencing at a point on Tramway No. 1B in Adelaide Street 0·54 chain south of the junction of Adelaide Street with Victoria Road and terminating at a point on Tramway No. 5 in Victoria Road 0·68 chain east of the junction of Adelaide Street with Victoria Road :

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Tramway No. 5c (a single line 1·32 chains in length) commencing at a point on Tramway No. 5 in Victoria Road 1·00 chain west of the junction of Westoe Road with Victoria Road and terminating at a point on Tramway No. 2 in Westoe Road 0·35 chain south of the junction of Mendelssohn Road with Westoe Road :

Tramway No. 6 (a double line 3 furlongs 1·20 chains in length) commencing at a point on Tramway No. 1 in Slake Terrace 1·26 chains measured in a north-easterly direction from a point in Slake Terrace opposite the gateway entrance to Tyne Dock the point of measurement being also opposite the centre of East Jarrow Road thence proceeding in a southerly direction along a portion of Slake Terrace thence in a south-easterly direction along the north-western portion of Hudson Street thence in a southerly and south-easterly direction along Boldon Lane and terminating at a point on Tramway No. 4 in Stanhope Road 1·05 chains north-east of the junction of Boldon Lane with Stanhope Road the point of measurement being also opposite the centre of Rutland Street :

Tramway No. 7 (6 furlongs 5·03 chains in length of which 3 furlongs 9·33 chains is double line and 2 furlongs 5·70 chains is single line) commencing at the termination before described in Tramway No. 3 in Laygate Lane and thence proceeding through the widened portion of Laygate Lane and Frederick Street (being Street Work No. 2 by this Act authorised) and thence in a southerly direction along Frederick Street thence continuing southwards along South Frederick Street to Gilbert Street thence westwards along Gilbert Street to South Eldon Street and thence southwards along South Eldon Street continuing along St. Mary's Terrace and a portion of Dean Road and terminating at a point on Tramway No. 1 in Slake Terrace 1·00 chain south of the junction of Dean Road with Temple Town :

Tramway No. 7 will be laid as a double line except between the following places where it will be laid as a single line (that is to say) :—

From a point 0·15 chain south of the junction of Have-lock Street with Frederick Street to the junction of Walpole Street with Frederick Street ;

From a point 3·00 chains south of the last-named junction of Walpole Street with Frederick Street to a point

0·30 chain south of the junction of Reed Street with South Frederick Street; A.D. 1903.

From a point 0·60 chain north of the junction of Bertram Street with South Frederick Street thence proceeding in a southerly direction along South Frederick Street to its junction with Gilbert Street thence in a westerly direction along Gilbert Street to its junction with South Eldon Street to a point in South Eldon Street 0·55 chain south of the junction of Gilbert Street with South Eldon Street:

Tramway No. 7A (a single line 1·78 chains in length) commencing at a point on Tramway No. 1 in Green Street 0·60 chain north-east of the junction of Laygate Lane with Green Street and terminating at a point on Tramway No. 7 in Frederick Street 1·18 chains south of the junction of Laygate Lane with Frederick Street:

Tramway No. 7B (a single line 1 furlong 4·05 chains in length) commencing at a point on Tramway No. 7 in South Frederick Street 0·60 chain north of the junction of Bertram Street with South Frederick Street thence proceeding in a westerly direction along a portion of Bertram Street to South Eldon Street thence in a southerly direction along South Eldon Street and terminating at a point on Tramway No. 7 in South Eldon Street 0·55 chain south of the junction of Gilbert Street with South Eldon Street:

Provided that the Corporation shall not construct that part of Tramway No. 6 along Hudson Street except in accordance with plans to be first submitted to and approved of by the Board of Trade.

7. The tramways shall be constructed on a gauge of four feet eight and a-half inches and carriages and trucks adapted to run on railways shall not be run thereon. Gauge of tramways.

8. If the tramways be not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Corporation for constructing the same or otherwise in relation thereto shall cease except as to so much of the said tramways respectively as is then constructed: Period for completion of tramways.

Provided that the Board of Trade may if they see fit allow an extension of time as regards some of the tramways or some portion of the tramways only or may direct that the powers of the Corporation shall cease under this section as regards some of the tramways or some portion of the tramways only and not as regards the

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Incorporation of certain sections of Order of 1881 and Act of 1896.

9. The following sections of the Order of 1881 and the Act of 1896 (that is to say) :—

Of the Order of 1881—

- Section 10 (Provisions as to construction of tramways);
- Section 11 (As to rails of tramways);
- Section 12 (Penalty for not maintaining rails and road in good condition);
- Section 15 (Temporary tramways may be made where necessary);
- Section 16 (Application of road materials excavated in construction of works);
- Section 17 (Tramways not to be opened until certified by Board of Trade);
- Section 20 (Byelaws);
- Section 21 (As to recovery of penalties);
- Section 22 (Amendment of the Tramways Act 1870 as to byelaws by Corporation);
- Section 23 (Orders and byelaws to be signed &c.);
- Section 24 (Traffic upon tramways);
- Section 25 (Lessees not bound to carry animals goods &c.);
- Section 26 (Provisions as to carriage of animals goods &c.);
- Section 27 (Heavy traffic between eight a.m. and eight p.m.);
- Section 28 (Corporation may use tramways for sanitary purposes);
- Section 29 (Tolls and charges);
- Section 30 (Passengers' luggage);
- Section 32 (Payment of tolls);
- Section 33 (Periodical revision of tolls);
- Section 37 (Certain provisions of the Tramways Act 1870 as to licences extended to persons using the tramways when open to the public);
- Section 38 (Carriages or horses unfit for use may be removed);
- Section 39 (Power to enter into agreements with respect to traffic &c.);
- Section 40 (Provisions as to arbitration);
- Section 43 (Saving for general Acts);

Of the Act of 1896—

Section 23 (Fares not to be raised on Sundays or holidays);

Section 26 (Provisions as to use of electric power);

Section 27 (For the further protection of the gas company
and the water company);

shall as extended by this Act so far as the same are applicable in that behalf and are not varied by or inconsistent with the provisions of this Act be incorporated with and extend and apply mutatis mutandis to and in relation to the tramways by this Act authorised save that in construing the said sections of the said Order for the purposes of this Act the word "Order" shall mean this Act the word "promoters" shall mean the Corporation and the expression "lessees" shall include the Corporation and in sections 29 32 and 33 of and in Schedule B to the said Order the word "toll" shall mean "rates":

Provided that the tramways authorised by this Act shall not be used for the conveyance of minerals or goods other than the materials mentioned in section 28 of the Order of 1881 and small parcels not exceeding twenty-eight pounds in weight.

10. Where in any road in which a double line of tramway is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Corporation shall if and when required by the Board of Trade construct a cross-over or cross-overs connecting the one tramway with the other and by the means of such cross-over or cross-overs the traffic shall when necessary be diverted from one tramway to the other.

Cross-overs
to be con-
structed in
certain cases.

11.—(1) The Corporation may subject to the provisions of this Act with the consent of the Board of Trade make maintain alter and remove such cross-overs passing-places sidings junctions and other works in addition to those particularly specified in and authorised by this Act as they find necessary or convenient for the efficient working of the tramways or for providing access to any warehouses stables or carriage-houses or works of the Corporation.

Power to
make addi-
tional cross-
overs and to
double tram-
way lines.

(2) Notwithstanding anything shown on the deposited plans the Corporation may with the consent of the Board of Trade lay down double lines in lieu of single lines or single lines in lieu of double lines or interlacing lines in lieu of double or single lines on any of the tramways and if at any time the road in which any tramway or part thereof is authorised to be laid or is laid has been or shall be altered or widened the Corporation may with the like consent construct such tramway or part thereof or (as the case

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(3) Provided that if in the construction of any works under this section any rail is intended to be so laid that a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Corporation shall not less than one month before commencing the works give notice in writing to every owner and occupier of premises abutting on the place where such less space would intervene and such rail shall not be so laid if the owners or occupiers of one third of such premises by writing under their hands addressed and delivered to the Corporation within three weeks after receiving the notice from the Corporation express their objection thereto.

Junctions with tramways which can be worked in connection with Corporation tramways.

12. The Corporation may form junctions between the Corporation tramways and any tramways tramroads or light railways within or without the borough which can be worked in connection therewith but only with the consent of the owners and lessees of such tramways and as to such of them as may be without the borough with the consent of the local and road authority within whose jurisdiction such junctions shall be formed.

For protection of Post Office telegraph lines.

13. In the event of the Corporation tramways being worked by electricity the following provisions shall have effect:—

(1) The Corporation shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Corporation as to compliance with this subsection shall be determined by arbitration:

(2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Corporation of their electric lines and works or by the working of the undertaking of the Corporation the Corporation shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection:

- (3) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Corporation or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Corporation and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work. Any difference which arises between the Postmaster-General and the Corporation as to any requirement so made shall be determined by arbitration :
- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Corporation is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Corporation's works or to the working of their undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Corporation enter any of the Corporation's works for the purpose of inspecting the Corporation's plant and the working of the same and the Corporation shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Corporation pursuant to the Board of Trade regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Corporation or their agents the Corporation shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Corporation or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid

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an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :

- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act :
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Corporation or their agents were a corporation within the meaning of that Act :
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Corporation by indictment action or otherwise in relation to any of the matters aforesaid :
- (12) In this section the expression "the Corporation" includes their lessees and any person owning working or running carriages on any of the Corporation tramways.

Provisions as
to motive
power.

14. The carriages used on the Corporation tramways may during the construction and reconstruction thereof and during any exceptional and temporary circumstances be moved by animal power but except as aforesaid shall be moved by mechanical power subject to the following provisions (that is to say) :—

- (1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade :
- (2) The Board of Trade shall make regulations (in this Act referred to as "the Board of Trade regulations") for securing

to the public all reasonable protection against danger arising from the use under this Act of mechanical power on the tramways and for regulating the use of electrical power : A.D. 1903.

(3) The Corporation or any company or person using any mechanical power on the said tramways contrary to the provisions of this Act or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof :

(4) The Board of Trade if they are of opinion—

(A) That the Corporation or such company or person have or has made default in complying with the provisions of this Act or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered ; or

(B) That the use of mechanical power as authorised under this Act is a danger to the passengers or the public ; may by order either direct the Corporation or such company or person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Corporation or such company or person shall comply with every such order In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

15. Notwithstanding anything in the Tramways Act 1870 to the contrary the Corporation may place and run carriages on and may work and may demand and take tolls and charges in respect of the Corporation tramways and in respect of the use of such carriages and may provide such stables buildings carriages trucks harness engines machinery apparatus horses steam cable electric and other plant appliances and conveniences as may be requisite or expedient for the convenient working or user of the said tramways by animal or mechanical power but nothing in this section shall empower the Corporation to construct any station for generating electrical power nor to create or permit a nuisance. Power to Corporation to work tramways.

Section 22 (Corporation may in certain cases work tramways) of the Act of 1896 is hereby repealed.

16. The Corporation may upon any lands which they are authorised to acquire appropriate and use for the purposes of this Act provide erect or construct any offices stables sheds workshops Power to use land for tramway purposes.

A.D. 1903. — stores waiting-rooms or other buildings yards works and conveniences (not being stations or works for generating electrical energy) for the purposes of the tramway undertaking Provided that the Corporation shall not at any time hold for such purposes more than ten acres of land Provided also that nothing in this Act shall exonerate the Corporation from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon lands appropriated or taken under the powers of this section.

Corporation may reduce width of footway for constructing tramways. 17. For the purpose of constructing any tramway in any street within the borough the Corporation may increase the width of the roadway of such street by reducing the width of the footway on each or either side of such street but not so as to be less than six feet.

Power to purchase tramways outside borough. 18. The power conferred on the Corporation by the Tramways Act 1870 to purchase tramways within the borough is hereby extended so as to authorise the Corporation by agreement to purchase or take upon lease any authorised tramways or tramroads or light railways outside the borough which form continuations of the Corporation tramways which can be worked in connection therewith Provided that nothing in this Part of this Act contained shall prejudice or affect the powers of the local authorities for the respective districts or parishes in which such tramways may be situate under section 43 of the Tramways Act 1870 or under any other Act or Order relating to those tramways or tramroads or light railways respectively.

Reconstruction and adaptation of tramways to mechanical power. 19. The Corporation may reconstruct or alter any of their existing tramways and may construct erect lay down place and maintain in over or under the surface of any street all such works as may be necessary or expedient for the purpose of adapting such tramways and the tramways by this Part of this Act authorised to the use of mechanical power and the Corporation may make and maintain openings in on or under the surface of any street or place.

Attachment of brackets to buildings. 20. The Corporation may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required for the working of the Corporation tramways by mechanical power :

Provided that—

- (1) Where in the opinion of the Corporation any consent under this section is unreasonably refused they may appeal to a petty sessional court who shall have power to allow

the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable in the circumstances or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid : A.D. 1903.

(2) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after the owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (1) :

(3) The owner may require the Corporation to temporarily remove the attachments where necessary during any reconstruction or repair of the building.

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rack-rent shall be deemed to be the owner.

21. The Corporation may provide and run omnibuses within the borough in connection with the Corporation tramways when the running of carriages thereon is impracticable or during the construction alteration or repair thereof or in prolongation of any tramway route the extension of which may be contemplated by the Corporation and may demand and take tolls and fares for the use of such omnibuses. Omnibuses in connection with tramways.

22. The Corporation may from time to time enter into agreements with any person company or local authority with respect to the following purposes or any of them (that is to say) :— Working agreements.

(A) The maintenance management and repair and equipment of any tramways or tramroads or light railways at present authorised and communicating with the Corporation tramways or the borough or any tramways tramroads or light railways which may hereafter be authorised to be constructed from the villages of Whitburn Cleadon and Harton or any of them (but not from any place beyond) so as to communicate with the Corporation tramways :

(B) The working and leasing of any such tramways or tramroads or light railways and the conveyance of traffic thereon :

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(c) The placing and running under any agreement for the working of the respective tramways or tramroads or light railways of the contracting parties by the other of them of carriages on any such tramways or tramroads or light railways necessary for the purposes of such agreement the running of through traffic and the interchange of traffic :

(d) The payment collection and apportionment of tolls rents or other receipts arising upon the respective tramways or tramroads or light railways.

Power to make agreements for construction and reconstruction of other tramways.

23. The Corporation may from time to time enter into agreements with any person company or local authority authorised to construct any tramways or tramroads or light railways communicating with the Corporation tramways or the borough for the construction or reconstruction within the borough of such tramways or tramroads or light railways :

Provided that every such agreement and any lease made in pursuance thereof shall be terminable by any party thereto at the expiration of any term not exceeding twenty-one years from the date thereof but may be renewed for a like term at the expiration of any such term and of every subsequent term for which the same may from time to time be renewed.

Power to Corporation to enter into agreements for running over other tramways.

24. The Corporation on the one hand and any person company or local authority on the other hand may from time to time enter into agreements for running over and using any tramways tramroads or light railways at present authorised and communicating with the Corporation tramways or the borough or any tramways tramroads or light railways which may hereafter be authorised to be constructed from the villages of Whitburn Cleadon and Harton or any of them (but not from any place beyond) so as to communicate with the Corporation tramways The running powers shall be deemed to be a purpose of the Corporation tramways Provided—

(1) That no such agreement shall have effect until approved by the Board of Trade :

(2) That all enactments byelaws and regulations relating to the use of or the running of carriages upon the tramways and the taking of tolls and charges therefor shall so far as applicable extend and apply mutatis mutandis to and shall be observed by the Corporation :

(3) That such running powers shall in no case be exclusive and shall cease unconditionally at the expiration of seven years from the date of the agreement :

(4) That further agreements for the exercise of such running powers may be made from time to time with the approval of the Board of Trade for any period not exceeding seven years Provided that such powers shall cease unconditionally at the expiration of the period for which the same are given : A.D. 1903.

(5) That all questions in dispute as to the construction of or arising in consequence of such agreements shall be determined by arbitration as by this Act provided.

25. If and whenever after the passing of this Act the Corporation alter the level of any road along or across which any part of any of the tramways is laid or authorised to be laid they may and shall from time to time alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered. Tramways to be kept on level of surface of road.

26. The provisions of sections 26 to 33 of the Tramways Act 1870 (except so much of section 28 as relates to the repair of the road between and on each side of the rails of a tramway) shall apply as if all posts tubes pipes wires and other apparatus used or to be used by the Corporation for the purpose of mechanical power were parts of the tramway. Apparatus used for mechanical power to be deemed part of tramway.

27. If at any time after the passing of this Act the Corporation acquire the interest of the South Shields Tramways and Carriage Company Limited in the existing tramways under the lease thereof granted by the Corporation and dated the fifth day of September one thousand nine hundred it shall also be lawful for the Corporation to acquire by agreement all or any of the property of the said company and all necessary powers for entering into and carrying into effect any such agreement and for determining the said lease are hereby conferred on the Corporation and the company. Power to acquire interests of lessees of tramways.

28. Notwithstanding anything in this Act contained the provisions of this Part of this Act shall not as respects any of the tramways demised by the said lease of the fifth day of September one thousand nine hundred come into operation until the expiration or sooner determination of the said lease. Saving for existing tramways.

29.—(1) The Corporation or their lessees at all times after the opening of the tramways for public traffic shall and they are hereby required to run a proper and sufficient service of carriages for artisans mechanics clerks shop assistants female workers and daily labourers each way every morning and every evening (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than nine in the morning or earlier than five in the Cheap fares for labouring classes.

A.D. 1903. — evening respectively as may be most convenient for such persons going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance. On Saturdays the Corporation or their lessees in lieu of running such carriages after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Corporation or their lessees to provide such service as may appear to the Board to be reasonable.

(3) The Corporation or their lessees shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

For protection of Harton Coal Company.

30. The following provisions for the protection of the Harton Coal Company Limited their successors and assigns (together hereinafter called "the coal company") shall except so far as the Corporation and the coal company may otherwise agree in writing under their respective common seals apply and have effect (that is to say):—

(1) In the construction of Tramway No. 1 by this Act authorised to be laid across the rails of the railways or waggonways of or belonging to or occupied by the coal company now laid upon the level of the streets called Station Road and Laygate Lane respectively the Corporation shall lay down and construct the same and apparatus in connection therewith so as to cause as little damage as possible to such railways or waggonways respectively and in accordance with a plan to be agreed upon by the engineers for the time being of the Corporation and the coal company and under the superintendence and to the reasonable satisfaction of the engineer for the time being of the coal company unless after seven days' notice given by the Corporation of their intention to commence such works such superintendence is refused or withheld and the said tramway and apparatus at the said level crossings shall be maintained and kept in constant and efficient repair to the reasonable satisfaction of the coal company's engineer for the time being. Provided that the said tramway and apparatus shall not be placed on the said railways or waggonways so as to interfere with the working thereof and that the Corporation shall in constructing the

said tramway and apparatus make such provision as may be required by the coal company to enable the traffic of the coal company on the said railways to be carried on without interruption :

- (2) The Corporation shall not stop any of their traffic or otherwise interfere with or obstruct the traffic of the coal company on either of the said level crossings and the traffic of the coal company shall at all times have precedence of the traffic of the Corporation. Provided always that the coal company shall by means of a suitable signal or signals to be maintained by them for the purpose in the street in such position adjoining each such level crossing as may be reasonably approved by the Corporation indicate from time to time as occasion may require when any traffic of the coal company is about to pass over such level crossing and that subject to such precedence as aforesaid the coal company shall not in conducting their traffic over such level crossing interfere in an unreasonable manner with the traffic of the Corporation :
- (3) If by reason of the execution of any of the tramways or apparatus or any proceedings of the Corporation or the failure of any such tramways or apparatus or any act or omission of the Corporation or of their servants the said railways or waggonways of the coal company shall be injured or damaged the same shall forthwith be made good by the Corporation at their own expense or in the event of their failure so to do the coal company may make good the same and recover the expense thereof from the Corporation :
- (4) Every carriage used upon the tramways at the said level crossings shall be constructed with sufficient brake power :
- (5) Where any of the tramways or any work by this Act authorised shall be made under any bridge belonging to the coal company any such tramways and the apparatus in connection therewith shall be so constructed or executed as not to interfere with the structure of such bridge save that the Corporation may attach to the under side of such bridge any brackets and apparatus subject to and upon the conditions prescribed by section 20 which shall *mutatis mutandis* apply :
- (6) Where any such tramways are laid over or upon any bridge or culvert belonging to the coal company the Corporation shall construct and maintain the tramways and apparatus so as to do as little damage as possible to such

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bridge or culvert and in the event of any injury being occasioned to any such bridge or culvert or any works in connection therewith or any part or parts thereof respectively by the construction or maintenance of such tramways or apparatus whether such injury occur either during or after the construction of or in maintaining such tramways or apparatus the Corporation shall forthwith restore to the reasonable satisfaction of the coal company such bridges culverts or works or the part or parts which may be injured to as good a state and condition as they were in before such injury was occasioned :

- (7) The Corporation shall give fourteen days' notice in writing to the coal company of the intention to commence the laying of any tramways or apparatus which affect or interfere with the structure of any such bridge or culvert and shall at the same time send sufficient plans specifications or other information to show the nature of such works and such works shall be constructed under the superintendence if such superintendence shall be given and to the reasonable satisfaction of the coal company :
- (8) In the event of the coal company desiring to construct the bridge over Stanhope Road referred to in the agreement between the Corporation and the coal company dated the twenty-fifth day of April one thousand eight hundred and ninety-six the Corporation shall at the request and cost of the coal company make such alterations in any of their apparatus or other works as may be necessary to enable such bridge to be constructed and maintained but in such event the Corporation may attach to the under side of such bridge such brackets and apparatus as may be required for the working of the tramways by mechanical power subject to and upon the conditions prescribed by section 20 of this Act which shall mutatis mutandis apply and in the event of the coal company desiring to carry out the widening of their tunnel or bridge under Laygate Lane as provided by the said agreement the coal company may require the Corporation at the expense of the coal company to alter any tramway or apparatus then laid upon or along the said tunnel or bridge in such manner as the circumstances may reasonably require and in making such requirements the coal company shall send to the Corporation a plan with sufficient specifications or other information to show the nature of the alterations required and the Corporation shall forthwith

carry out any such alteration accordingly and recover the cost thereof from the Company and in the event of their failure to do so the coal company may carry out the same Provided that the coal company shall in the carrying out of the work of widening the said tunnel or bridge make such temporary or other provision as may be required by the Corporation to enable the traffic on the tramways of the Corporation to be carried on without interruption during the usual hours of service :

(9) Any difference which may arise between the Corporation and the coal company touching anything to be done or the reasonableness of any sums costs and expenses or in any manner in connection with this section shall be settled by a referee to be nominated by the Board of Trade under section 33 of the Tramways Act 1870 and such last-mentioned section shall apply to all differences arising between the Corporation and the coal company touching all matters and things done or omitted to be done by either the Corporation or the coal company under the provisions of this section :

(10) Nothing in this section contained shall take away lessen prejudice or alter any of the rights of the Corporation now subsisting under the agreements dated the sixth day of November one thousand eight hundred and seventy-eight and the twenty-fifth day of April one thousand eight hundred and ninety-six made between the Corporation and the coal company or their predecessors in title :

(11) In this section the expression "the Corporation" shall include their lessees or other the persons for the time being working the tramways and the word "apparatus" includes posts conductors wires tubes mains plates cables ropes and apparatus and any similar appliances to be used as or for the purposes of a motive power for the carriages running on any tramway and includes also any openings and ways for the purposes of such apparatus.

31. If within fourteen days after receiving notice from the Corporation of their intention to lay down any tramway by this Act authorised in any road in which any mains or pipes for the supply of gas belonging to the South Shields Gas Company are situate the South Shields Gas Company give to the Corporation notice in writing of their desire themselves to execute any alterations of the said mains or pipes which may be necessary that company shall be

For protec-
tion of South
Shields Gas
Company in
respect of
tramways.

A.D. 1903. — entitled themselves to execute such alterations Provided always that such alterations shall be forthwith carried out with all reasonable despatch and the reasonable cost of executing such alterations shall be repaid by the Corporation to the South Shields Gas Company.

For protec-
tion of North
Eastern
Railway
Company.

32. For the protection of the North Eastern Railway Company (in this section called "the railway company") the following provisions shall unless otherwise agreed between the Corporation and the railway company be observed and have effect (that is to say) :—

(1) In this section the word "apparatus" includes posts electric mains wires cables tubes and any similar appliances to be used for the purpose of a motive power for the carriages running on the tramways and includes also any subways tunnels openings excavations channels and pipes for the purposes of such apparatus :

(2) Subject as hereinafter provided the Corporation shall not in the execution maintenance repair user or removal of any of their tramways or apparatus injure any railway or work of the railway company or obstruct or interfere with the free uninterrupted and safe user of any such railway or work and in the event of any injury being so caused to any railway or work of the railway company the railway company may at the expense in all things of the Corporation restore such railway or work to as good a condition as it was in before such injury was occasioned :

Provided that the lowering of any roads under any bridge carrying a railway of the railway company may be carried out as in this section provided :

(3) The construction of the tramway over the level crossing of the railway company at Laygate Lane shall be carried out according to such plans drawings and specifications and mode of construction as shall be reasonably approved by the engineer for the time being of the railway company Provided that if the engineer of the railway company shall for the period of two months neglect to signify his approval or disapproval or shall unreasonably disapprove of such plans drawings specifications or mode of construction then the said works shall be constructed according to plans sections and specifications to be submitted to and approved by an engineer to be agreed upon or in default of agreement to be appointed by the Board of Trade at the request either of the railway company or of the Corporation :

- (4) The Corporation shall on demand pay to the railway company the reasonable expense of the employment by the railway company during the execution or repair of any work affecting any bridge railway or other work of the railway company of a sufficient number of inspectors watchmen and signalmen to be appointed by the railway company for watching and signalling the same with reference to and during such execution or repair :
- (5) The Corporation shall be responsible for and shall make good to the railway company all losses damages and expenses which may be occasioned to the railway company or any of their works or property or to the traffic on their railways by reason of the execution or failure of any of the intended works or by reason of any act default or omission of the Corporation or of their contractors servants or agents :
- (6) If in the construction of the tramways it becomes necessary to lower any road under a bridge which carries the railway company's railway so much of the lowering of such road as may be under any such bridge shall if and so far as shall be required by the railway company be carried out by the railway company at the expense of the Corporation and if in the opinion of the railway company the construction maintenance or user of the tramways renders it necessary or expedient for the safety of the railway to alter reconstruct or underpin any of such bridges or to execute any works for the protection of the same then and in every such case the work shall be carried out by the railway company at the expense in all things of the Corporation :
- (7) If having regard to the proposed position of any works of the Corporation by this Act authorised when considered in relation to the position of the works of the railway company at any point where the tramways will be constructed under any railway of the railway company it becomes advisable in order to avoid danger from the breaking or falling of wires or otherwise that any electric or signal wires or apparatus of the railway company should be altered the railway company may execute any works reasonably necessary for such alteration and the reasonable expense of executing such works shall be borne by the Corporation :
- (8) The Corporation shall not under the powers of this Act compulsorily acquire any property of the railway company :
- (9) If any difference shall arise under this section between the Corporation and the railway company touching anything

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done or omitted to be done or not to be done or in any manner in connection with the foregoing provisions of this section the matter in difference shall unless otherwise agreed be determined by a single arbitrator to be appointed in case of difference by the Board of Trade.

Annual
statement
and balance
sheet of
accounts.

33. The Corporation shall once in every year after the first year's working of the Corporation tramways cause to be laid before them a statement and balance sheet of the accounts of the Corporation tramways and the Corporation shall thereupon fix annually the tolls fares and charges to be levied by them for the use of the tramways for the then ensuing year at such rates (not exceeding the tolls fares and charges authorised by this Act) so that as far as is reasonably practicable the revenue for that year shall not be less than the expenditure for the same year.

PART III.

STREET WORKS.

Power to
make street
works.

34. Subject to the provisions of this Act the Corporation may make and maintain in the lines and situations and within the limits of deviation shown on the deposited plans and according to the levels shown on the deposited sections the works hereinafter described together with all necessary approaches retaining walls piers abutments tunnels subways arches sewers drains goits culverts and other works and conveniences connected therewith or incident thereto (that is to say):—

Work No. 1 A widening of Station Road and Derby Street at the south-east corner of Station Road and the north-west corner of Derby Street commencing in Station Road at the junction of Claypath Lane with Station Road 1·33 chains or thereabouts north of the junction of Derby Street with Cuthbert Street and Station Road and terminating at a point in Derby Street 1·41 chains or thereabouts measured in an easterly direction from the junction of Cuthbert Street and Station Road with Derby Street:

A new street or cut-through 40 feet wide commencing at a point in Derby Street opposite the public baths and wash-houses 1·41 chains or thereabouts from the junction of Derby Street with Cuthbert Street and Station Road proceeding in a southerly direction and terminating at a point in East Adelaide Street 1·60 chains or thereabouts north of the junction of Martin Street with East Adelaide Street so as to extend and continue East Adelaide Street to Derby Street:

Work No. 2 A widening of Laygate Lane and Frederick Street on the south side of Laygate Lane and at the north-east corner of Frederick Street commencing in Laygate Lane 0·16 chain or thereabouts south-east of the junction of Adelaide Street with Laygate Lane and terminating at a point in Frederick Street 1·00 chain or thereabouts measured in a southerly direction from the junction of Laygate Lane with Frederick Street: A.D. 1903.

Work No. 3 A widening of Fowler Street at Albion Terrace on the east side thereof by taking into the public footway a portion of the forecourt or garden of No. 7 Albion Terrace commencing at a point 2 chains or thereabouts measured in a southerly direction from the south-west corner of Winchester Street and terminating at a point in Albion Terrace 2·70 chains or thereabouts measured in a southerly direction from the south-west corner of Winchester Street:

Work No. 4 A widening of Fowler Street at Victoria Terrace on the west side thereof by taking into the public footway a portion of the forecourt or garden of No. 15 Victoria Terrace commencing at a point in Fowler Street 0·65 chain or thereabouts measured in a southerly direction from the south-east corner of Mount Terrace and terminating at a point in Fowler Street 0·95 chain or thereabouts measured in a southerly direction from the south-east corner of Mount Terrace:

Work No. 5 A widening of Fowler Street at Victoria Terrace on the west side thereof by taking into the public footway a portion of the forecourt or garden of No. 17 Victoria Terrace commencing at a point in Fowler Street 1·30 chains or thereabouts measured in a southerly direction from the south-east corner of Mount Terrace and terminating at a point in Fowler Street 1·60 chains or thereabouts measured in a southerly direction from the south-east corner of Mount Terrace:

Work No. 6 A widening of Laygate Lane at Clarendon Terrace on the south-west side thereof by taking into the public footway a portion of the forecourt or garden of Nos. 24 23 22 21 20 19 18 and 17 Clarendon Terrace commencing in Laygate Lane at the south-eastern end of Clarendon Terrace at the northernmost corner of Holy Trinity Vicarage Grounds and terminating at the north-western end of the same terrace at its junction with Alice Street:

Work No. 7 A widening of Laygate Lane at Gladstone Terrace on the south-west side thereof by taking into the public

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footway a portion of the forecourt or garden of Nos. 15 and 14 Gladstone Terrace commencing at a point in Laygate Lane 0·29 chain or thereabouts measured in a north-westerly direction from the north-west corner of Alice Street and terminating at a point in Laygate Lane 0·94 chain or thereabouts measured in a north-westerly direction from the north-west corner of Alice Street :

Work No. 8 A widening of Laygate Lane at Gladstone Terrace on the south-west side thereof by taking into the public footway a portion of the forecourt or garden of Nos. 12 11 and 10 Gladstone Terrace commencing at a point in Laygate Lane 1·23 chains or thereabouts measured in a north-westerly direction from the north-west corner of Alice Street and terminating at a point in Laygate Lane 0·61 chain or thereabouts measured in a south-easterly direction from the north-east corner of John Williamson Street.

Incorporation of sections 7 and 13 of Act of 1900.

35. The following sections of the Act of 1900 (that is to say) :—

Section 7 (Deviation from line and levels) ;

Section 13 (For protection of Sunderland and South Shields Water Company) ;

shall as extended by this Act and so far as the same are not varied by or are not inconsistent with the provisions of this Act be incorporated with and extend and apply to and in relation to the street works and improvements authorised by this Act.

For protection of South Shields Gas Company in respect of street works.

36. For the protection of the South Shields Gas Company (in this section referred to as “ the company ”) the following provisions shall unless otherwise agreed between the Corporation and the company have effect (that is to say) :—

(1) Before commencing any of the street works by this Act authorised whereby the mains or other pipes of the company may be disconnected or otherwise interfered with the Corporation shall from time to time and at least fourteen days before the commencement of any such work deliver to the company plans and sections and a description of the works so proposed to be executed describing the proposed manner of executing the same If it should appear to the company that such works will interfere with or endanger any of their mains pipes or other works or impede the supply of gas supplied by the company the company may give notice to the Corporation to raise lower or otherwise alter the position of any such mains pipes or other works or to support the

same or to substitute temporarily or otherwise other mains pipes or other works in such manner as may be considered necessary by the company and to lay or place under any mains pipes or other works cement concrete or other like substance and any difference as to the necessity of such raising lowering altering supporting or substituting mains pipes or other works or laying or placing cement concrete or other like substance (hereinafter called "protective works") shall be settled as hereinafter provided and all such protective works shall (save as hereinafter provided) be done and executed by and at the expense of the Corporation but to the satisfaction and under the superintendence of the engineer of the company and the reasonable costs charges and expenses of such superintendence shall be paid by the Corporation. But notwithstanding the provision last aforesaid (if the company by notice in writing to the Corporation within seven days after the receipt by them of notice of the intended commencement by the Corporation of any works of the Corporation so require) the company may by their own engineer or workmen do and execute the protective works relating to any of the works by this Act authorised and the Corporation shall on the completion thereof pay to the company the reasonable expenses incurred by the company in the execution of such protective works :

- (2) In the event of such plans sections and description so delivered to the company as aforesaid not being objected to within fourteen days the said works shall be executed in strict accordance therewith :
- (3) The company may if they deem fit employ watchmen or inspectors to watch and inspect the protective works to be executed by the Corporation during their progress and execution by the Corporation and the reasonable wages of such watchmen or inspectors shall be borne by the Corporation and be paid by them to the company :
- (4) If any interruption in the supply of gas by the company shall without the written authority of the company be in any way occasioned either by reason of the exercise of the statutory powers conferred upon the Corporation or by the act or acts or default or defaults of the Corporation or of any of their contractors agents workmen or servants or any person in the employ of them or any or either of them the Corporation shall forfeit and pay to the company for the use and benefit of the company a sum of twenty pounds for every

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day or part of a day during which such interruption shall continue :

- (5) The expense of all repairs or renewals of the mains pipes or other works of the company or any works in connection therewith which may at any time hereafter be rendered necessary either by reason of the exercise of the statutory powers conferred upon the Corporation or by the acts or defaults of the Corporation their contractors agents workmen or servants or any person in the employ of them or any or either of them or rendered necessary by reason of any subsidence resulting from the works of the Corporation whether during the construction of the works or at any time thereafter shall be borne and paid by the Corporation :
- (6) Before stopping up or diverting any street or part of a street in or under which any main pipe or other works of the company may be laid the Corporation shall from time to time give at least fourteen days' notice in writing to the company of their intention so to do and at the same time deliver to them a plan showing the extent of such streets as may be intended to be so stopped up or diverted and the Corporation shall provide in substitution for the mains pipes or other works in such streets (but not in substitution for such service pipes as belong to the company and shall be no longer required) mains pipes or other works of such capacity and to such extent as may be necessary for continuing and maintaining the supply of gas to the inhabitants to be laid in such manner and in such position as shall be agreed to between the Corporation and the company and in default of agreement as shall be settled by arbitration in manner hereinafter mentioned and thereupon the mains pipes and other works of the company in such portion of the streets so stopped up or diverted may be removed by and at the expense of the Corporation and may be appropriated by them Provided that (if the company by notice in writing to the Corporation within seven days after receipt by them of notice of such intended stopping up or diversion as aforesaid so require) the company may by their engineer or workmen do and execute the works in this subsection mentioned but shall not without the consent of the Corporation remove the mains pipes or other works from the streets proposed to be diverted or stopped up except so far as may be necessary in connection with the laying or fixing of the substituted mains pipes or other works and the Corporation shall on the

completion thereof pay to the company the reasonable expenses incurred by the company in the execution of such works And until such mains pipes or other works shall be removed and replaced it shall be lawful for the company and their engineer workmen or others in their employment at all times to enter upon the lands works and premises of the Corporation or their assigns at any point or place where any mains pipes or other works of the company may be situate and to do all such works in and upon such lands and premises as may be necessary for repairing maintaining removing replacing or extending any such mains pipes or other works as aforesaid :

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(7) If any difference shall arise between the Corporation and the company or their respective engineers concerning any plans sections or descriptions to be delivered to the company under this section or the protective works to be carried out or any money to be paid or with respect to any other matter arising under this Act the matter in difference shall be referred to and settled by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers :

(8) In settling any question under this section an arbitrator shall have regard to any duties or obligations which the company may be under in respect of their mains pipes and other works and may if he thinks fit require the Corporation to execute any temporary or other works so as to avoid interference with any purpose for which the said mains pipes or other works are used so far as may be possible.

37. For the protection of W. B. Reid & Co. Limited or other the owner or owners of the lands and hereditaments known as the Queen's Head public-house situate at the corner of Claypath Lane and Cuthbert Street and numbered 1 and 2 on the deposited plans of Street Work No. 1 (hereinafter referred to as "the owners") the following provisions shall notwithstanding anything in this Act contained or shown on the deposited plans have effect (that is to say) :—

For protec-
tion of W. B.
Reid & Co.
Limited

(A) The Corporation shall not under the powers of this Act purchase or acquire otherwise than by agreement any part of the said lands and hereditaments save only such portion thereof as lies to the south-west of the north-eastern boundary of the intended new or widened street at the junction of Derby Street with Cuthbert Street and Station Road as

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shown by the intended line of frontage on the deposited plans or as lies to the south-west of such line (not distant more than 2 feet to the south-west of such intended line of frontage) as may be the north-eastern boundary of such street as actually constructed :

- (B) The price to be paid for the said portion of the said lands and hereditaments so to be purchased and acquired as aforesaid shall be ascertained by arbitration in the manner provided by the Lands Clauses Acts and in ascertaining such price the arbitrator shall have regard to any increased or prospective value which shall have accrued or may accrue by reason or in consequence of the making of the new street to such portion of the said lands and hereditaments as shall not have been acquired by the Corporation and the amount of such increased or prospective value shall be deducted from the price to be paid to the owners for the lands and hereditaments so to be purchased and acquired as aforesaid.

PART IV.

GENERAL PROVISIONS COMMON TO TRAMWAYS AND STREET WORKS.

Incorporation of certain sections of Acts of 1896 and 1900.

38. The following sections of the Acts of 1896 and 1900 (that is to say) :—

Of the Act of 1896—

Section 46 (Corporation empowered or may be required to underpin or otherwise strengthen houses near works) ;

Section 47 (Temporary stoppage of streets) ;

Of the Act of 1900—

Section 8 (Power to make subsidiary works) ;

Section 9 (Power to sell materials) ;

shall so far as the same are applicable and are not inconsistent with the provisions of this Act extend and apply mutatis mutandis to and in relation to the constructing and maintaining of the tramways and street works by this Act authorised.

Power to make general works.

39. Subject to the provisions of this Act the Corporation may as regards the street works within the limits of deviation shown on the deposited plans and as regards the tramways in adjoining or abutting upon the streets in which such tramways are proposed to be laid make and maintain all such approaches retaining walls piers abutments embankments girders cantilevers bridges arches sewers drains goits culverts excavations and other works and conveniences connected with the tramways and street works as they may deem necessary.

PART V.

A.D. 1903.

ELECTRICAL SUPPLY.

40. The Corporation may use the lands described in the Third Schedule to this Act for the purpose of generating electric energy and may thereon either in connection with or separate from their electric lighting works at present constructed thereon erect construct and maintain all such buildings engines dynamos machinery apparatus and appliances as may be necessary or convenient for generating distributing transforming and supplying electric energy for any purpose for which electric energy is by the Order of 1891 or by this Act authorised to be used or supplied :

Generating stations.

Provided that nothing in this Act shall empower the Corporation to construct a station for generating electric energy elsewhere than on the lands so described.

PART VI.

LANDS.

41.—(1) Subject to the provisions of this Act the Corporation may enter upon take hold retain and use all or any of the lands shown on the deposited plans and described in the deposited book of reference (that is to say) :—

Power to purchase and hold lands.

(A) For the purposes of the street works or improvements and for providing space for the erection of houses and buildings adjoining or near to the said street works and improvements or for resale as in this Act provided the lands shown on the deposited plans and described in the deposited book of reference in connection with such street works and improvements :

(B) For the purposes of the Corporation tramways the lands numbered 1 to 10 inclusive on the deposited plans sheet No. 33 marked "No. 1 Land and properties to be compulsorily purchased" and described in the deposited book of reference in connection therewith :

(C) For the purposes of a site for generating electric energy the lands numbered 1 to 12 inclusive on the deposited plans sheet No. 42 marked "No. 2 Land and properties to be compulsorily purchased" and described in the deposited book of reference in connection therewith.

(2) The powers of the Corporation for the purchase of lands by agreement shall extend to and authorise the purchase by the Corporation by agreement of any other lands which they may think it desirable to purchase in order to provide substituted sites or facilities for any persons whose lands may be required by them

A.D. 1903. — for the purposes of or in connection with the street works and improvements or for any of the purposes of this Act.

Stopping up of highways over lands acquired for generating station.

42. Upon the acquisition by the Corporation of the lands which are shown on the deposited plans and described in the deposited book of reference to be acquired for the purposes of a site for generating electric energy the Corporation may stop up and discontinue for public use any highway or public passage situate upon such lands and upon the stopping up and discontinuance of the same the site and soil thereof shall be by this Act vested in the Corporation freed from all rights of way over or affecting the same.

Incorporation of certain sections of Acts of 1896 and 1900.

43. The following sections of the Acts of 1896 and 1900 (that is to say) :—

Of the Act of 1896—

Section 42 (Correction of errors &c. in deposited plans and book of reference);

Section 48 (Restrictions on displacing persons of labouring class);

Section 50 (Power to take easements &c. by agreement);

Section 51 (Corporation may use their own lands for purposes of Act);

Section 54 (As to consent of Local Government Board to sale &c. of lands);

Of the Act of 1900—

Section 16 (Compensation in case of recently altered buildings);

Section 17 (Parts only of certain properties may be taken);

Section 19 (Power to sell lands);

shall as extended by this Act and so far as the same are not varied by or are not inconsistent with the provisions of this Act extend and apply to and in relation to the taking of lands required for the purposes of this Act save that in construing the 42nd section of the Act of 1896 the expression “the parish clerk of the parish of Jarrow” shall be read as “the town clerk of the borough of South Shields” wherever the same shall occur in the said section and in construing the 48th section of the Act of 1896 the expression “the fifteenth day of December last” occurring therein shall be read as “the fifteenth day of December next before the passing of this Act” and in construing the 16th section of the Act of 1900 the “twelfth day of January one thousand eight hundred and ninety-nine” shall be read as the “nineteenth day of November one thousand nine hundred and two” and in construing the 17th section of the Act of 1900 “the Second Schedule of this Act” shall be read as “the Second Schedule of this Act.”

Limitation of time for purchase of land.

44. The powers of the Corporation for the compulsory purchase or taking of lands for the purposes of this Act shall cease after the expiration of five years from the passing of this Act.

PART VII.

A.D. 1903.

FINANCIAL PROVISIONS.

45. (1) The Corporation may from time to time independently of any other borrowing power borrow at interest the sums of money following (that is to say):— Power to borrow.

- (A) For paying the costs charges and expenses of this Act as hereinafter provided the sum requisite for that purpose:
- (B) For the purposes of the tramway undertaking the sum of one hundred and seventy-five thousand nine hundred and seventeen pounds:
- (C) For providing capital necessary for working the Corporation tramways the sum of ten thousand pounds:
- (D) For and in relation to the street works authorised by this Act to be carried out including the purchase of lands therefor and for providing spaces adjoining or near to such streets for the erection of buildings or other purposes the sum of thirty-two thousand three hundred and fifteen pounds:
- (E) For the purchase of land for and the erection of municipal buildings the sum of sixty thousand pounds:
- (F) For the purchase of lands for the erection thereon of buildings and apparatus for the purposes of the Corporation tramways such sum as the Board of Trade may sanction:
- (G) For the purchase of lands for a generating station such sum as the Local Government Board may sanction.

(2) In addition to the moneys which the Corporation are by this section authorised to borrow they may borrow such further sums of money for tramway or light railways purposes as the Board of Trade may sanction and such further sums of money for any of the other purposes mentioned in this section or purposes of this Act as the Local Government Board may sanction.

In order to provide for the repayment of moneys borrowed under this section and the repayment of interest thereon the several revenues of the Corporation are hereby specially made liable and such moneys are hereby primarily chargeable accordingly (that is to say):—

As regards purposes (A) (B) (C) (D) and (F) the tramway revenue and the borough fund and the borough rate:

As regards purpose (E) the borough fund and borough rate:

As regards purpose (G) the electric lighting undertaking of the Corporation and the district fund and the general district rate:

A.D. 1903.

As regards the moneys to be sanctioned by the Board of Trade or the Local Government Board under subsection (2) of this section such fund or rate as may be by existing statutes applicable to the purposes thereof.

Transfer of
twenty thou-
sand pounds
to tramway
undertaking.

46. Whereas by section 21 of the Act of 1900 the Corporation were empowered to borrow for and in relation to the street works authorised by that Act the sum of two hundred and fifty-eight thousand and eighty-seven pounds of which one hundred and six thousand seven hundred and one pounds three shillings and one penny only has been borrowed and in order to provide for the repayment of the said sum of two hundred and fifty-eight thousand and eighty-seven pounds and of the interest thereon the district fund and general district rate were specially made liable and such moneys were thereby primarily chargeable accordingly And whereas the street works authorised by the said Act included the widening of Fowler Street on the west side thereof which was deemed to be necessary as to part thereof by the laying down and working of the tramways authorised by the Act of 1896 to be constructed in that street And whereas the said widening has partly been carried out but is not yet completed and it is estimated that the net cost thereof when completed after deducting the proceeds of sale of surplus land will amount to sixty thousand pounds And whereas although the powers conferred on the Corporation by the 1896 Act of laying tramways in Fowler Street will expire on the sixth day of July one thousand nine hundred and three a similar power of laying tramways in this street is conferred upon the Corporation by this Act And whereas it is expedient that one third of the estimated net cost of the said widening should be debited to the Corporation tramways Now it is hereby enacted that notwithstanding anything contained in the Act of 1900 to the contrary in order to provide for the repayment of twenty thousand pounds part of one hundred and fifty-one thousand three hundred and eighty-five pounds sixteen shillings and elevenpence remaining unborrowed of the said sum of two hundred and fifty-eight thousand and eighty-seven pounds and the interest on such sum of twenty thousand pounds the tramway revenue and the borough fund and the borough rate to that extent are hereby specially made liable and such moneys are hereby primarily chargeable accordingly.

Period for
payment off
of borrowed
moneys.

47. The Corporation shall pay off all moneys borrowed by them under this Act within the respective periods (that is to say):—
As to moneys borrowed for the purposes (A) mentioned in the section of this Act the marginal note whereof is "Power to

borrow" within five years from the date or dates of borrowing the same : A.D. 1903.

As to moneys borrowed for the purposes (b) in the said section mentioned within thirty years from the date or dates of borrowing the same :

As to moneys borrowed for the purposes (c) in the said section mentioned within ten years from the date or dates of borrowing the same :

As to moneys borrowed for the purposes (d) in the said section mentioned within fifty years from the date or dates of borrowing the same :

As to moneys borrowed for the purposes (e) in the said section mentioned within sixty years from the date or dates of borrowing the same :

As regards moneys borrowed with the sanction of the Board of Trade or the Local Government Board within the periods not exceeding sixty years sanctioned by those Boards respectively.

48. The following sections of the Acts of 1896 and 1900 (that is to say) :—

Of the Act of 1896—

- Section 197 (Authentication and services of notices &c.) ;
- Section 202 (Compensation &c. how to be determined) ;
- Section 203 (Compensation may be in land &c.) ;
- Section 206 (Powers of Act cumulative) ;
- Section 207 (Audit of accounts) ;
- Section 208 (Inquiries by and expenses of Local Government Board) ;
- Section 209 (Costs of Act) ;

Of the Act of 1900—

- Section 24 (Certain regulations of Public Health Act 1875 as to borrowing not to apply) ;
- Section 42 (Protection of lender from inquiry) ;
- Section 44 (Information and return to Board) ;

shall as extended by this Act so far as the same are applicable in that behalf and are not varied by and are not inconsistent with the provisions of this Act extend and apply to and in relation to this Act.

49. All moneys from time to time received by the Corporation in respect of the Corporation tramways except (a) borrowed money (b) money arising from the disposal of lands acquired for the

Incorporation of certain sections of Acts of 1896 and 1900.

Application of tramway revenue.

A.D. 1903. — purposes of the said undertaking and (c) other moneys received on capital account shall be applied by them as follows :—

- (1) In payment of the working and establishment expenses and costs of maintenance of the undertaking including all costs expenses penalties and damages incurred or payable by the Corporation consequent upon any proceedings by or against the Corporation their officers or servants in relation to the undertaking :
- (2) In payment of the interest or dividend on any mortgages stock or other securities granted and issued by the Corporation in respect of money borrowed for tramway purposes :
- (3) In providing any instalments or sinking fund required to be provided in respect of moneys borrowed for the Corporation tramways :
- (4) In payment of all other the expenses of the Corporation tramways not being expenses properly chargeable to capital :
- (5) In providing a reserve fund if they think fit by setting aside such money as they may from time to time think reasonable and investing the same and the resulting income thereof in any statutory security as defined by the Act of 1896 and accumulating the same at compound interest until the fund so formed amounts to one fifth of the aggregate capital expenditure on the Corporation tramways which fund shall be applicable from time to time to answer any deficiency at any time happening in the tramway revenues or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the Corporation tramways or to defray the cost of any alteration or renewal thereof and so that if that fund is at any time reduced it may thereafter be again restored to the prescribed limit and so from time to time as often as such reduction happens.

The Corporation shall carry the net surplus revenue in any year and the annual proceeds of the reserve fund when amounting to the prescribed limit to the credit of the borough fund and borough rate or at their option shall apply such surplus or some part thereof in reduction of the capital moneys borrowed for the Corporation tramways and the capital moneys so reduced shall not be re-borrowed Provided that no part of the surplus revenue shall be carried to the credit of the borough fund or borough rate until the reserve fund amounts to five thousand pounds.

Any deficiency of income in any year shall be charged upon and payable out of the borough fund and if that fund be insufficient

for the purposes such insufficiency shall be made up by an increase of the current year's borough rate or by an increase of the next borough rate made after the deficiency is ascertained. A.D. 1903.

PART VIII.

TUBERCULOSIS.

50. In this Part of this Act—

Definitions.

“Dairy” means any farm farmhouse cowshed milk store milk shop or other place from which milk is supplied or in which milk is kept for purposes of sale;

“Dairyman” means any cowkeeper purveyor of milk or occupier of a dairy;

“Medical officer” means the medical officer of health of the borough and includes any person duly authorised to act temporarily as medical officer of health.

51. Every person who knowingly sells or suffers to be sold or used for human consumption within the borough the milk of any cow which is suffering from tuberculosis of the udder shall be liable to a penalty not exceeding ten pounds. Penalty for selling milk of diseased cows.

52. Any person the milk of the cows in whose dairy is sold or suffered to be sold or used for human consumption within the borough who after becoming aware that any cow in his dairy is suffering from tuberculosis of the udder keeps or permits to be kept such cow in any field shed or other premises along with other cows in milk shall be liable to a penalty not exceeding five pounds. Penalty on failing to isolate diseased cows.

53. Every dairyman who supplies milk within the borough and has in his dairy any cow affected with or suspected of or exhibiting signs of tuberculosis of the udder shall forthwith give written notice of the fact to the medical officer stating his name and address and the situation of the dairy or premises where the cow is. Obligation to notify cases of tuberculosis.

Any dairyman failing to give such notice as required by this section shall be liable to a penalty not exceeding forty shillings.

54.—(A) It shall be lawful for the medical officer or any person provided with and if required exhibiting the authority in writing of such medical officer to take within the borough for examination samples of milk produced or sold or intended for sale within the borough. Power to take samples of milk.

(B) The like powers in all respects may be exercised outside the borough by the medical officer or such authorised person if he shall first have obtained from a justice having jurisdiction in the place where the sample is to be taken an order authorising the

A.D. 1903. — taking of samples of the milk which order any such justice is hereby empowered to make.

Power to inspect cows and to take samples of milk.

55.—(A) If milk from a dairy situate within the borough is being sold or suffered to be sold or used within the borough the medical officer or any person provided with and if required exhibiting the authority in writing of the medical officer may if accompanied by a properly qualified veterinary surgeon at all reasonable hours enter the dairy and inspect the cows kept therein and if the medical officer or such person has reason to suspect that any cow in the dairy is suffering from tuberculosis of the udder he may require the cow to be milked in his presence and may take samples of the milk and the milk from any particular teat shall if he so requires be kept separate and separate samples thereof be furnished.

(B) If the medical officer is of opinion that tuberculosis is caused or is likely to be caused to persons residing in the borough from consumption of the milk supplied from a dairy situate within the borough or from any cow kept therein he shall report thereon to the Corporation and his report shall be accompanied by any report furnished to him by the veterinary surgeon and the Corporation may thereupon serve on the dairyman notice to appear before them within such time not less than twenty-four hours as may be specified in the notice to show cause why an order should not be made requiring him not to supply any milk from such dairy within the borough until the order has been withdrawn by the Corporation.

(c) If the medical officer has reason to believe that milk from any dairy situate outside the borough from which milk is being sold or suffered to be sold or used within the borough is likely to cause tuberculosis in persons residing within the borough the powers conferred by this section may in all respects be exercised in the case of such dairy. Provided that the medical officer or other authorised person shall first have obtained from a justice having jurisdiction in the place where the dairy is situate an order authorising such entry and inspection which order any such justice is hereby empowered to make.

(D) Every dairyman and the persons in his employment shall render such reasonable assistance to the medical officer or such authorised person or veterinary surgeon as aforesaid as may be required by such medical officer person or veterinary surgeon for all or any of the purposes of this section and any person refusing such assistance or obstructing such medical officer person or veterinary surgeon in carrying out the purposes of this section shall be liable to a penalty not exceeding five pounds.

(E) If in their opinion the dairyman fails to show cause why such an order should not be made as aforesaid the Corporation may make the said order and shall forthwith serve notice of the facts on the county council of any administrative county in which the dairy is situate and on the Local Government Board and if the dairy is situate outside the borough on the council of the borough or district in which it is situate. A.D. 1903.

(F) The said order shall be forthwith withdrawn on the Corporation or their medical officer being satisfied that the milk supply has been changed or that it is not likely to cause tuberculosis to persons residing in the borough.

(G) If any person after any such order has been made supplies any milk within the borough in contravention of the order or sells it for consumption therein he shall be liable to a penalty not exceeding five pounds and if the offence continues to a further penalty not exceeding forty shillings for every day during which the offence continues.

(H) A dairyman shall not be liable to an action for breach of contract if the breach be due to an order under this section.

56. The dairyman may appeal against an order of the Corporation made under the last preceding section or the refusal of the Corporation to withdraw any such order either to a petty sessional court having jurisdiction within the borough or at his option if the dairy is situate outside the borough to the Board of Agriculture who shall appoint an officer to hear such appeal. Such officer shall fix a time and place of hearing within the borough and give notice thereof to the dairyman and the town clerk not less than forty-eight hours before the hearing. Such officer shall for the purposes of the appeal have all the powers of a petty sessional court. Appeal.

The Board of Agriculture may at any stage require payment to them by the dairyman of such sum as they deem right to secure the payment of any costs incurred by the Board of Agriculture in the matter of the appeal.

The court or the Board of Agriculture as the case may be may confirm vary or withdraw the order which is the subject of the appeal and may direct to and by whom the costs of the appeal (including any sum paid or payable to the Board of Agriculture as aforesaid) are to be paid but pending the decision of the appeal the order shall remain in force unless previously withdrawn by the Corporation.

57. If an order is made without due cause or if the Corporation unreasonably refuse to withdraw the order the dairyman shall if not Compensation to dairyman.

A.D. 1903. himself in default be entitled to recover from the Corporation full compensation for any damage which he has sustained by reason of the making of the order or of the refusal of the Corporation to withdraw the order.

The court or the Board of Agriculture may determine and state whether an order the subject of appeal has been made without due cause and whether the Corporation have unreasonably refused to withdraw the order and whether the dairyman has been in default.

Any dispute as to the fact whether the order has been made or maintained without due cause or as to the fact of default where any such fact has not been determined by the court or Board of Agriculture or as to the fact of damage or as to the amount of compensation shall be determined in the manner provided by section 308 of the Public Health Act 1875 and that section shall accordingly apply and have effect as if the same were herein re-enacted and in terms made applicable to any such dispute as aforesaid.

Notice of provisions of this Part of Act.

58. The Corporation shall cause to be given public notice of the effect of the provisions of this Part of this Act by advertisement in local newspapers and by handbills and otherwise in such manner as they think sufficient and this Part of this Act shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Corporation may fix. Copies of the newspaper containing such advertisement shall be sufficient evidence that the provisions of this section have been complied with.

Procedure.

59. Offences under this Part of this Act may be prosecuted and penalties may be recovered by the Corporation before a petty sessional court having jurisdiction in the place where the dairy is situate or the offence is committed and not otherwise.

As to expenses.

60. All expenses incurred by the Corporation in carrying into execution the provisions of this Part of this Act shall be chargeable upon the district fund and general district rate and the Corporation may also charge upon the same fund and rate any expenses incurred by them in the application by a veterinary surgeon of the tuberculin or other reasonable test for the purpose of discovering tuberculosis to any cow whose milk is or was recently being supplied within the borough. Provided that no such test shall be applied except with the previous consent of the owner of such cow.

Execution of this Part of Act by committee.

61. This Part of this Act may be carried into execution by a committee of the council formed in accordance with and subject to

the provisions of the Fourth Schedule to the Diseases of Animals Act 1894 except that the committee shall consist wholly of members of the council. A.D. 1903.

PART IX.

POLICE REGULATIONS.

62. The following provisions shall have effect with reference to children trading in the streets (that is to say) :—

Provisions as
to children
trading in
streets.

- (1) "Child" shall mean a boy or girl under the age of sixteen years;

"Trading in the streets" shall mean vending papers small wares and other articles in any street in the borough;

"Place of safety" shall have the same meaning as in the Prevention of Cruelty to Children Act 1894:

- (2) The Corporation may make regulations as to the conditions upon which licences authorising children to trade in the streets shall be granted continued suspended and revoked including conditions as to the age and sex of children to whom licences may be granted conditions for the issue and wearing of badges and for the regulation of the conduct of children holding licences and of the hours during which the places where and the conditions under which they may trade in the streets. The regulations shall be subject to the approval of the Secretary of State and shall both before and after such approval is given be published in such manner as the Secretary of State shall direct. Provided that such regulations shall not impose any restriction on the grant of licences on the ground of the poverty or the previous bad character either of the child or of its parents or guardians:

- (3) Subject to such regulations the Corporation may grant a licence to any child authorising him to trade in the streets and after such day as may be fixed in the regulations or such later day (hereinafter referred to as "the appointed day") as may be fixed by the Secretary of State no child shall trade in the streets unless provided with a licence under this section:

- (4) Any constable may take into custody without a warrant any child found after the appointed day trading in the streets without a licence or in contravention of the conditions of his licence and may convey him to a place of safety and he may be there detained until he can be brought before a court of summary jurisdiction and that court may make such order as is mentioned in the next following subsection:

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—

(5) Where it appears to a court of summary jurisdiction that a child has been found trading in the streets without a licence or in contravention of the conditions of his licence the court may if satisfied on inquiry that it is expedient so to deal with him—

(A) Order that the child be taken out of the custody of the person purporting to have the custody charge or care of him and be committed to the custody of a relative of the child or some other fit person named by the court (such relative or other person being willing to undertake such custody) until he reaches the age of sixteen years or for any shorter period and the provisions of sections 7 and 8 of the Prevention of Cruelty • to Children Act 1894 shall so far as applicable and with the necessary modifications apply as if the order had been made under that Act and the court may on its own motion or on the application of any person by order renew vary and revoke any such order ;

(B) Order that the child if he be under the age of fourteen years be sent to an industrial school and thereupon all the provisions of the Industrial Schools Acts shall apply as if the child had been so sent under those Acts ;

(c) In the case of a child found trading without a licence the court may in lieu of making such order impose on summary conviction a penalty not exceeding ten shillings :

(6) The Corporation may contribute the whole or part of the expense of the education and maintenance of any child dealt with under the subsection :

(7) Any person who having the custody charge or care of a child allows him after the appointed day to contravene the provisions of this section or any of the regulations made hereunder shall on summary conviction be liable to a fine not exceeding twenty shillings for each offence :

(8) The Corporation in their discretion may contribute to the expenses of any lodgings for children licensed by them under this section and may pay wholly or in part for the boarding of such children and may also contribute to the provision of clothing for children licensed under this section :

(9) The Corporation shall appoint such inspectors and other officers as they may deem necessary for the purpose of administering or assisting in the administration of the foregoing provisions and for the purpose of periodically visiting

the houses of persons to whose custody any children have been committed under this section and any lodgings mentioned in the preceding subsection with the object of securing the proper treatment of such children : A.D. 1903.

- (10) Any expense incurred by the Corporation in the execution of this section shall be defrayed out of the borough fund or rate.

PART X.

MISCELLANEOUS.

63. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate or being a member of the council. Qualification of judge or justice.

64.—(1) Every person being a manufacturer or merchant or dealer in ice-creams or other similar commodity who within the borough— For regulating manufacture and sale of ice-cream.

(A) Causes or permits ice-cream or any similar commodity to be manufactured sold or stored in any cellar or room in which there is an inlet or opening to a drain ; or

(B) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination ; or

(C) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer of health for the borough ;

shall be liable for every such offence on summary conviction to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building any part of which is used for the manufacture of ice-cream or similar commodity suffering from any infectious disease the medical officer may seize and destroy all ice-cream or similar commodity or materials for the manufacture of the same in such building and the Corporation shall compensate the owner of such ice-cream or similar commodity or materials so destroyed.

65.—(1) Every dealer in ice-creams or other similar commodity and every dealer in fried fish vending his wares from any cart barrow or other vehicle or stand shall have his name and address legibly painted or inscribed on such cart barrow or stand. As to dealers in ice-creams and fried fish.

Any such vendor or dealer who fails to comply with the foregoing enactment shall be liable on summary conviction for every such offence to a penalty not exceeding forty shillings.

A.D. 1903. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

LOCAL ACTS AND ORDERS.

Regnal Year and Chapter.	Short Title.
16 & 17 Vict. c. lxxxiii.	The South Shields Improvement Act 1853.
24 Vict. c. xxiii. -	The South Shields Improvement Amendment Act 1861.
44 & 45 Vict. c. cv. -	The South Shields Corporation Tramways Order 1881 confirmed by the Tramways Orders Confirmation (No. 1) Act 1881.
46 & 47 Vict. c. xciii. -	The South Shields Corporation Tramways (Amendment) Order 1883 confirmed by the Tramways Orders Confirmation (No. 4) Act 1883.
54 Vict. c. lii. -	The South Shields Electric Lighting Order 1891 confirmed by the Electric Lighting Orders Confirmation (No. 4) Act 1891.
59 & 60 Vict. c. l. -	The South Shields Corporation Act 1896.
63 & 64 Vict. c. clviii. -	The South Shields Corporation Act 1900.
1 Edw. VII. c. clxviii. -	The South Shields (Extension) Order 1901 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 7) Act 1901.

THE SECOND SCHEDULE.

DESCRIBING HOUSES BUILDINGS AND MANUFACTORIES OF WHICH
PORTIONS ONLY MAY BE TAKEN.

Street Work.	Numbers on deposited Plans.
No. 3 - - - -	1.
" 4 - - - -	1A.
" 5 - - - -	1B.
" 6 - - - -	1 2 3 4 5 6 7 and 8.
" 7 - - - -	1 and 2.
" 8 - - - -	1 2 and 3.

THE THIRD SCHEDULE.

A.D. 1903.

LANDS TO BE USED FOR STATION FOR GENERATING ELECTRICAL ENERGY.

Certain lands and premises in the borough and parish of South Shields belonging to or reputed to belong to John Black William Charlton Forster trustee of John Harrison (deceased) and the Corporation containing three thousand six hundred and thirty square yards or thereabouts bounded on the north by the public street or road known as Penny Pie Stairs on the east by the public street or road known as West Holborn on the south in part by a street or road leading from West Holborn to the electricity works of the Corporation and to the manufactory of the Tyne Flint Glass Works belonging to Messrs. Edward Moore and Company and in the remaining part by the said Tyne Flint Glass Works and on the west by the public quay known as the West Holborn Quay.

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